

Pay transparency: customer FAQ

DRAFT, not for distribution to customers

Legal knowledge centre Belgium | Author: Claire Lambotte

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0.1	2026-03-16	First draft	Claire Lambotte

This FAQ is meant for Belgian customers who ask what the EU Pay Transparency Directive (2023/970) means for them. It is written so that consultants can send answers as they are.

What is the Pay Transparency Directive?

An EU directive that aims to close the gender pay gap by making pay more transparent. Member States had to transpose it by 7 June 2026.

Does it apply in Belgium?

Yes. The Belgian law transposing the directive applies from **7 June 2026** to all employers in the private sector, whatever their size. Some obligations (reporting) depend on the number of employees.

[TODO Claire: add the reference of the Belgian act and the date of publication]

What changes for recruitment?

- Job applicants must receive information on the starting pay or pay range of the position, in the vacancy or before the interview.
- Employers may no longer ask applicants about their pay history.
- Vacancy notices and job titles must be gender neutral.

What can employees ask?

Every employee may ask, in writing, for:

- their own pay level, and
- the average pay levels, broken down by gender, for the category of workers doing the same work or work of equal value.

The employer must answer within two months. Employers must also inform all employees of this right once a year.

What must the employer make available?

The criteria used to set pay, pay levels and pay progression. These criteria must be objective and gender neutral. Employers with fewer than 50 employees may be exempted from the part on pay progression.

Who has to report on the gender pay gap?

Number of employees	First report	Frequency
250 or more	June 2027	Every year
150 to 249	June 2027	Every 3 years
100 to 149	June 2031	Every 3 years
Fewer than 100	No obligation	Voluntary

The first report covers the calendar year 2026.

What is a joint pay assessment?

If the report shows a gender pay gap of 5% or more in a category of workers that the employer cannot justify with objective, gender neutral criteria, and the employer does not correct it within six months, a joint pay assessment with the employee representatives is required.

What about the existing Belgian gender pay gap law?

The 2012 law (analysis report every two years for companies with 50 or more employees) remains.
[TODO: check with Pieter how the two reports fit together]

How can SD Worx help?

- Pay data by category and gender from the payroll data we already process.
- Support to define job categories and work of equal value.
- A reporting service for companies with 100 or more employees.

[TODO: check product names with the reporting team before this goes out]

What should customers do now?

1. Review the pay criteria and job architecture.
2. Check vacancy texts and recruitment forms (remove questions on pay history).
3. Run a first gender pay analysis on 2025 data to see where gaps are.
4. Prepare a standard answer for employee information requests.